IN THE HIGH COURT OF SOUTH AFRICA
(FREESTATE LOCAL DIVISION)

CASE NO 341/2399/2023

IN THE MATTER BETWEEN:

JOHN SMITH — Plaintiff

and

JANE SMITH (VOSLOO) — Defendant

SETTLEMENT AGREEMENT

WHEREAS the Plaintiff has issued Summons against the Defendant for a Divorce and ancillary relief as a result of the irretrievable breakdown of the marriage relationship between the parties; and

WHEREAS the parties have arrived at a settlement in respect of the property rights of the parties, custody of the minor children, maintenance, and ancillary matters;

and

WHEREAS the parties agree to the following terms and conditions they desire to have made an Order of Court.

NOW THEREFORE THE PARTIES AGREE AS FOLLOWS:

1. **DIVISION OF ESTATE**

1.1 The Plaintiff shall pay to the Defendant the sum of R800 000,00 (EIGHTHUNDERD THOUSAND RAND) payable withing 7 days from date of divorce. The money shall be paid directly into Defendant's bank account with the following details:

Bank Account: ABSA
Branch: BRANDWAG
Account No: 378-90125-01

1.2 The entire balance of the joint estate shall vest in the Plaintiff including all immovable property registered in the name of the Plaintiff.

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2 CUSTODY OF THE MINOR CHILDREN

Custody of the minor children born of the marriage shall be awarded to the Plaintiff subject to the Defendant's reasonable right of access.

MAINTENANCE

The Defendant hereby waives any claims in respect of maintenance for herself against the Plaintiff.

COSTS

The Plaintiff will contribute the sum of R10 000,00 towards the legal costs of the Defendant which shall include any costs order, which amount shall be payable on date of divorce to Defendant's attorneys.

This agreement shall constitute the full and final settlement of all claims against the other, either now or in future. This agreement entered into between the parties, and, save for the above neither party shall have any claims against the other arising contractually or otherwise and for any reason whatsoever.

SIGNED at Bloemfontein on this 25th day of OCTOBER 2023.

AS WITNESSES:

1. _____

2. _____

JOHN SMITH

SIGNED at BLOEMFONTEIN on this 26th day of OCTOBER 2023.

AS WITNESSES:

1. _____

2. _____

JANE SMITH.

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